



8.014 Ineligibility

CFR § 246.7(j) Notification of participant rights and responsibilities

I. Policy Statement

Persons found ineligible for the Program during a certification visit must be advised in writing of the ineligibility, of the reasons for the ineligibility, and of the right to a fair hearing. The reasons for ineligibility must be properly documented and must be retained on file at the local agency.

II. Notification of Ineligibility

The Notification of Ineligibility form notifies applicants and participants of their right to a fair hearing, of the reason they were determined ineligible for the program and/or the reason for a program disqualification. This form is available in HANDS or under “Policies and Forms” page under Local Agencies at www.dcwic.org. A signature is not required.

Persons found ineligible at the time of certification shall be issued the DC WIC “Notification of Ineligibility” form. Staff shall ensure the name of the participant is on the form. It is not necessary or required to issue this form when category changes are made, as category changes do not lead to appeal rights. Those who change categories after a certification shall be notified verbally of their new certification dates.

A person who will be disqualified from the program by the State Agency shall be issued the Notification of Ineligibility form no less than 15 days before the disqualification.

NOTE: Staff shall not make photocopies of applicants’ proof of income.

LA Staff shall use the termination codes listed in Appendix 8.001c when terminating certifications.

III. Information About Reapplication

Applicants will be informed on how to reapply if conditions change or if they obtain the necessary documentation.

IV. Referrals

Applicants will be given written information regarding other food assistance programs for which they may be eligible.